

Court No. - 40

Case :- WRIT - C No. - 25947 of 2021

Petitioner :- Smt. Khursheeda Begum

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kamlesh Tiwari, Gyan Prakash Tiwari

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Misra, J.

Hon'ble Sameer Jain, J.

The petitioner is facing recovery of Rs. 3,43,400/- towards electricity dues, which has not been challenged in this petition.

The prayer in this petition is to issue a direction upon the electricity department to restore the electricity connection, which was temporarily disconnected for non-deposit of dues by allowing him the facility to deposit the dues in instalments.

Sri Baleshwar Chaturvedi, who appears for the respondents 2 and 3, has invited our attention to clause 6.14 of U.P. Electricity Supply Code, 2005 which provides for the facility of payment of dues in instalments to those consumers who are in financial distress. Sub-clause (2) of clause 6.14 of the Code, 2005 confers power on officers not below the rank of Executive Engineer to allow such facility.

In view of above, we deem it appropriate to dispose of this petition by giving liberty to the petitioner to make a representation to the respondent no.2 (Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Hapur) for fixing instalments and for re-connection. If any such representation is submitted by the petitioner, the same shall be addressed expeditiously, preferably, within a period of three weeks from the date of filing of such representation by a speaking order.

Order Date :- 2.11.2021

AK Pandey